

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 20
JUDICIAL OFFICER: MELISSA O'CONNELL
HEARING DATE: 04/23/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED.** Dept. 20's email address is: dept20@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 20 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling must be attached to the proposed order when submitted to the Court for issuance of the order.

Discovery Law & Motion

1. 9:00 AM CASE NUMBER: C25-00378
CASE NAME: ALEXIA GELINAS VS. CONNOR LEWIS
*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH SUBPOENA FOR PSYCHOTHERAPY RECORDS
FILED BY: LEWIS, CONNOR
TENTATIVE RULING:

Defendant's Motion to Compel compliance with subpoena for Plaintiff's psychotherapy records from Jennifer Oetinger, LMFT is GRANTED, but with the modification that the documents shall be produced to the court for an initial in camera review and will be released to the defense subject to a protective order. Discussed in detail, *infra*.

DISCLOSURE: This Judge's child currently attends Monte Vista High School and has attended that school since August 2023. This Judge is not familiar with the Plaintiff in this matter or their family based on the information known.

Additionally, this Judge could not determine from the briefing whether the criminal case related to this matter was prosecuted in Alameda or Contra Costa County. If the matter was prosecuted in Contra Costa County, this Judge makes the disclosure that their spouse is the chief assistant district attorney with the Contra Costa County District Attorney's Office. This Judge does not know any information about the criminal matter related to this case aside from what was mentioned in the briefs by the parties to this civil action.

In this case, Plaintiff alleges that Defendant caused physical and emotional injuries to Plaintiff, a minor at the time, following an incident occurring on May 21, 2022. Defendant is also alleged to have unlawfully gained access to Plaintiff's Snapchat account, and shared personal and confidential photos within that account with others. Plaintiff filed this civil lawsuit seeking damages for the physical and emotional injuries she suffered and emotional distress.

One month following the incident, Plaintiff began seeing Licensed Marriage and Family Therapist (LMFT) Jennifer Oetinger and had continued seeing LMFT Oetinger for the past four years. According to the defense, Plaintiff stated in her verified responses to Form Interrogatories that she has several specific emotional injuries and distress attributed to the incident.

This court recognizes that Plaintiff's communications with LMFT Oetinger fall squarely within the protection of the Psychotherapist-Patient privilege, pursuant to California Evidence Code §1014. However, Plaintiff has waived the privilege to a limited extent by filing this lawsuit and asserting claims that the incident resulted in emotional distress, ongoing psychological injury and seeks damages for the same arising from the alleged conduct attributed to the Defendant.

“[S]ection 1016 of the Evidence Code, the patient-litigant exception to the psychotherapist-patient privilege, [] provides that: ‘[there] is no privilege under this article as to a communication relevant to an issue concerning the mental or emotional condition of the patient if such issue has been tendered by: (a) the patient’” (*In re Lifschutz* (1970) 2 Cal. 3d 415, 431.) However, courts have found that the exception is not boundless.

[T]he patient-litigant exception allows only a limited inquiry into the confidences of the psychotherapist-patient relationship, compelling disclosure of only those matters directly relevant to the nature of the specific ‘emotional or mental’ condition which the patient has voluntarily disclosed and tendered in [her] pleadings or in answer to discovery inquiries.

(*Id.*)

The California High Court in *Lifschutz* observed the “‘automatic’ waiver of privilege contemplated by section 1016 must be construed not as a complete waiver of the privilege but only as a limited waiver concomitant with the purposes of the exception. Under section 1016 disclosure can be compelled only with respect to *those mental conditions* the patient-litigant has ‘[disclosed] . . . by bringing an action in which *they* are in issue.’” (*Lifschutz, supra*, p. 435 (*emphasis in original*), citing *City & County of San Francisco v. Superior Court, supra*, 37 Cal.2d 227, 232). “[C]ommunications which are not directly relevant to those specific conditions do not fall within the terms of section 1016’s exception and therefore remain privileged....The patient thus is not obligated to sacrifice all privacy to seek redress for a specific mental or emotional injury; the scope of the inquiry permitted depends upon the nature of the injuries which the patient-litigant [herself] has brought before the court.” (*Id.*)

“In determining whether one has waived the right of privacy by bringing suit, our Supreme Court has noted that although there may be an implicit partial waiver, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities.” (*Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014; *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 842, quoting *Britt v. Superior Court* (1978) 20 Cal.3d 844, 859.) “An implicit waiver of a party’s constitutional rights encompasses only discovery *directly relevant* to the plaintiff’s claim and essential to the fair resolution of the lawsuit.” (*Davis, supra*, p. 1014, *Vinson v. Superior Court, supra*, 43 Cal.3d at p. 842.) “Even when discovery of private information is found directly relevant to the issues of ongoing litigation, it will not be automatically allowed; there must then be a careful balancing of the compelling public need for discovery against the fundamental right of privacy.” (*Davis, supra*, p. 1014; *Binder v. Superior Court* (1987) 196 Cal.App.3d 893, 900.) “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner.” (*Binder, supra*, pp. 900-901.) “[T]he extent to which a mental component may be in issue in a particular suit depends upon the facts of a particular case. (*Davis, supra*, pp. 1015-1016; *Roberts v. Superior Court, supra*, 9 Cal.3d 330, 338-339.

The burden is on the party seeking the protected information to establish direct relevance. (*Harris v. Superior Court* (1992) 3 Cal.App.4th 661, 665.) In *Davis*, the court found that the “[r]eal party [sought] a broad range of materials” that were not “directly relevant to the condition [petitioner] placed at issue.” (*Davis, supra*, p. 1017.) The *Davis* court observed:

[T]he materials sought must be directly relevant to the issue of pain and suffering associated with the physical injuries petitioner sustained. By limiting her claim for emotional distress to pain and suffering associated with stated physical injuries, and by explaining that the center provided no treatment in connection with the injuries for

which compensation was sought, petitioner established that it is not reasonably probable that the records are directly relevant to the condition she placed in issue.

(*Davis, supra*, p. 1017; citing *Lifschutz, supra*, pp. 436-437.)

However, on balance, courts have found that:

[B]ecause only the patient, and not the party seeking disclosure, knows both the nature of the ailments for which recovery is sought and the general content of the psychotherapeutic communications, the burden rests upon the patient initially to submit some showing that a given confidential communication is not directly related to the issue [s]he has tendered to the court...A patient may have to delimit his claimed 'mental or emotional distress' or explain, in general terms, the object of the psychotherapy in order to illustrate that it is not reasonably probable that the psychotherapeutic communications sought are directly relevant to the mental condition that he has placed in issue.

(*Lifschutz, supra*, 436-437.)

Here, unlike *Davis*, Plaintiff is seeking "compensatory and emotional distress damages according to proof." In response to interrogatories, Plaintiff provided specific continuing conditions of emotional injury and distress related to the conduct attributed to Defendant. Plaintiff started seeing LMFT Oetinger a month after the incident for therapy related to trauma from the incident. This court finds that some of Plaintiff's therapy records would be directly relevant to the claims she has raised and therefore discoverable. However, the court is limiting disclosure on two grounds. First, Defendant's request is overly broad in that it seeks "[a]ll medical records, reports, notes, memoranda, consultations, evaluations, handwritten notes, telephone messages, billing, including any and all lien documents/records, and any correspondence pertaining to the examination and/or treatment of the record subject." Defendant has failed to demonstrate how all this information is directly relevant to Plaintiff's claims for emotional distress. This court would observe that at least some of this information sought would be reasonably probable to contain directly relevant information such as the records, reports, notes, evaluations and handwritten notes. Secondly, Plaintiff may have waived her privilege, but it is not absolute, and this court finds her privacy rights still outweigh an unlimited release of her personal therapy records.

In *Lifschutz, supra*, pp. 436-437, the California Supreme Court balanced the disclosure of these types of communications in lawsuits like that here, with the plaintiff's privacy interests:

In determining whether communications sufficiently relate to the mental condition at issue to require disclosure, the court should heed the basic privacy interests involved in the privilege (cf. *Wiesenberger v. W. E. Hutton & Co.* (S.D.N.Y. 1964) 35 F.R.D. 556, 557-558); in general, the statutory psychotherapist-patient privilege "is to be liberally

construed in favor of the patient.” (Cf. *Carlton v. Superior Court*, *supra*, 261 Cal.App.2d 282, 288; *Newell v. Newell* (1956) 146 Cal.App.2d 166, 177 [303 P.2d 848].)

Furthermore, “because of the intimate and potentially embarrassing nature of such communications, [trial courts] may utilize the protective measures at their disposal to avoid unwarranted intrusions into the confidences of the relationship” even when the evidence is directly relevant to the plaintiff’s alleged mental condition “the codes provide a variety of protections that remain available to aid in safeguarding the privacy of the patient.” (*Lifschutz*, *supra*, pp. 431, 437.)

Exhibit 3 to Plaintiff’s Declaration of Caryn N. Fabian in support of Plaintiff’s Opposition is an email from October 2025 in which Plaintiff’s counsel indicates that “Ms. Oetinger’s records cover much material beyond that which Defendant is entitled to and is necessary for a determination of the amount of Plaintiff’s damages as a result of the incident, and beyond that which a court would order produced.” As such, this court is ordering:

Defendant’s Motion to Compel is GRANTED, but with the modification that the documents shall be produced to the court for an initial in camera review. Further, the court intends to only produce those documents that relate to the conditions that Plaintiff specifically attributes to the incident involving Defendant and to the conditions she provided in her response to interrogatories as those discussions may be relevant to the Plaintiff’s claims for emotional injuries.

The subpoenaed party, LMFT Jennifer Oetinger, are directed to produce the requested documents to defendant’s discovery copying service by May 8, 2026. The service is ordered to not open the records, but rather to deliver them to Department 20, Judge Melissa O’Connell, of the Contra Costa County Superior Court, Wakefield-Taylor Courthouse for the court to conduct the in camera review. The parties will be informed of the result of the in camera inspection once it has been conducted. If any documents are inadvertently produced to defense counsel, defense counsel is ordered that it cannot open those records, but rather should notify plaintiffs’ counsel of the inadvertent disclosure and immediately deliver the records to the court for its inspection.

All records that are subsequently produced to the defense following the in camera review are subject to a protective order to be stipulated to by the parties that: 1) prevents the records from being used or disclosed beyond litigation in this specific matter and 2) prohibits copies of the records from being provided directly to Defendant Lewis.